



POLICE DEPARTMENT

August 17, 2018

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In the Matter of the Disciplinary Proceedings :

- against - :

Detective Ylka Morales :

Tax Registry No. 914384 :

Military and Extended Leave Desk :

FINAL

ORDER

OF

DISMISSAL
-----X

Detective Ylka Morales, Tax Registry No. 914384, Shield No. 05340, Social Security No. ending in [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered 2018-19184, as set forth on form P.D. 468-121, dated June 25, 2018, and after a review of the entire record, has been found Guilty as Charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Detective Ylka Morales from the Police Service of the City of New York.


JAMES P. O'NEILL
POLICE COMMISSIONER

EFFECTIVE:

8/21/18

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>



POLICE DEPARTMENT

-----X
In the Matter of the Charges and Specifications

: Case No. 2018-19184

- against -

Detective Ylka Morales

Tax Registry No. 914384

Military and Extended Leave Desk
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Nancy R. Ryan
Assistant Deputy Commissioner - Trials

APPEARANCE:

For the Department: Samuel Yee, Esq.
Assistant Department Advocate
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: Marissa Gillespie, Esq.
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

Charges and Specifications:

1. Said Detective Ylka Morales, while assigned to Narcotics Borough Brooklyn North, on or about and between March 12, 2018, and June 12, 2018, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that Detective Ylka Morales wrongfully ingested cocaine without police necessity or authority to do so.
P.G. 203-10, Pg. 1, Para. 5 – PUBLIC CONTACT – PROHIBITED CONDUCT
GENERAL REGULATIONS
2. Said Detective Ylka Morales, while assigned to Narcotics Borough Brooklyn North, on or about and between March 12, 2018, and June 12, 2018, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that Detective Ylka Morales wrongfully possessed cocaine without police necessity or authority to do so.
P.G. 203-10, Pg. 1, Para. 5 – PUBLIC CONTACT – PROHIBITED CONDUCT
GENERAL REGULATIONS

The above-named member of the Department appeared in the Department trial room to conference this matter on August 2, 2018. On that date, a trial was scheduled and thereafter held before me on August 9 and 14, 2018. The Department called Sergeant William Maher, Police Officer Althea McLean and Dr. Thomas Cairns as witnesses. Respondent was tried *in absentia*. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

Jurisdiction for Hearing in Absentia

This matter was conferenced in the Department trial room on August 2, 2018. On that date Respondent appeared with counsel and thereafter signed two trial notifications for August 9 and 14, 2018, in the presence of Sergeant Andy Mosquea. (Tr. 3; Court Ex. 1)

On August 9, 2018, Respondent's attorney, Marissa Gillespie, Esq., appeared in the trial room to inform the tribunal that neither she nor Respondent would be participating in the trial; she thereafter withdrew from the proceedings. (Tr. 3-4)

Upon review of the record I find that Respondent received actual notice of the charges and of this proceeding. RCNY 15-03(b)(2). This finding is confirmed by Respondent's acknowledgement and signature of two trial notifications in the presence of a sergeant from the Department Advocate's Office, as well as Ms. Gillespie's representation that Respondent was aware of the proceedings, chose not to participate, and knew that the hearing would proceed in her absence. Based on the foregoing, Respondent's Departmental disciplinary trial was conducted *in absentia*. RCNY 15-03(d).

Summary of Facts

Police Officer Althea McLean, a twenty-year veteran of the Department assigned to the Medical Division's Drug Screening Unit, testified that on June 12, 2018, she was on duty and collected hair and urine samples from members of the service who had been ordered to report to that day for random drug screening. As a senior member of the Drug Screening Unit, McLean is also responsible for notifying members of service via telephone and official Department communication that they must appear for testing. (Tr. 10-11).

McLean testified that she was certified regarding how to properly collect and seal hair and urine samples for drug testing after completing online courses offered by Psychemedics Corporation (Psychemedics), the drug testing laboratory the Department utilizes for hair sample testing, and Quest Corporation. (Tr. 12).

McLean recalled that Respondent appeared at the Medical Division on June 12, 2018, at 0920 hours. (Tr. 14). McLean testified that she collected hair and urine samples from

Respondent in accordance with the Drug Screening Unit's mandated sample collection procedures.

Respondent was assigned a drug screening number, 01-0326-18-XNH, which was entered on the Medical Division's "Drug Screening Questionnaire – Hair Testing" form. She was also assigned a drug screening number for the urine sample that would be taken; that number, 01-0326-18-XN, was entered on the "Drug Screening Questionnaire for Urine" form. (Dept. Exs. 1 & 2). Respondent entered her name, shield number, rank and tax number on the forms. Section 1 of the hair testing questionnaire form required Respondent to "list any prescription medication taken during the past 3 months." Respondent wrote "[REDACTED]" and "[REDACTED]" *[sic]*. The corresponding section of the urine testing questionnaire required Respondent to list any prescription medication taken in the past 72 hours. Respondent reported none. (T. 19).

Respondent was then escorted into an examination room where she and McLean completed the lower section of both forms. Respondent signed and dated the form and McLean signed it as the "collector." The Respondent's index finger was inked and her fingerprint was then memorialized on the forms. (Tr. 20-21).

Respondent's drug screening number was also entered on three "Forensic Drug Testing Custody and Control" forms. (Tr. 21) These three identical forms each contained a different pre-printed "Specimen ID" number. Respondent signed and dated each of the forms and McLean signed both forms as the "collector." (Dept. Exs. 3A-3B).

The two "Forensic Drug Testing Custody and Control" forms that were to accompany the two hair samples to be mailed to Psychemedics bore Specimen ID numbers Y753199 (Dept. Ex. 3A) and Y753200 (Dept. Ex. 3B). These two forms also contain different pre-printed Laboratory

Accession Numbers (LAN). Specimen ID number Y753199 contained LAN 213037166 and Specimen ID number Y753200 contained LAN 410033888. (Dept. Ex. 3A-B, 8).

McLean then followed mandated Department hair sample collection procedures by cleaning the sample collection table with alcohol spray and wiping it down. She then put clean white medical paper on top of the table and unwrapped an unused sterile pair scissors. (T. 29-30). On the table she set-up three strips of tin foil, three collection envelopes, and three sample labels all of which she removed from a standard kit provided by Psychemedics. McLean then took out and put on new sterile gloves. (Tr. 31).

Next, she created a part in Respondent's hair and used the new scissors to cut a hair sample approximately the width of a pencil's lead close to the scalp. (T. 32). McLean then separated the cut hair into three equal piles. Each pile was placed into one of the three packets of tin foil. Each packet of tin foil was folded and then placed into one of three sample collection envelopes which were each sealed along with a Sample Acquisition Card (SAC). McLean signed each SAC and the seal on each sample collection envelope in the Respondent's presence and she then had Respondent initial each SAC and initial the seal on each sample collection envelope. (Dept. Exs. 4A-4B; Tr. 36-37).

McLean then placed the three samples into a temporary storage bin by dropping them through a slot in the locked cabinet in Respondent's presence. (Tr. 51-52; Dept. Ex. 5). The two hair sample SACs that bore Specimen ID numbers Y753199 and Y753200 were later mailed to Psychemedics for testing. (Dept. Exs. 4A-B). The third sample was retained inside the locker for Respondent's use in the event that she chose to have it tested by an independent laboratory.

Sergeant William Maher, assigned to IAB Group 42, interviewed Respondent on June 26, 2018 (T. 64). During the interview Respondent was given the opportunity to provide an explanation for the positive drug test and she was not able to provide any explanation. (T. 65).

Dr. Thomas Cairns, the Senior Scientific Advisor for Psychomedics, a drug testing laboratory in Culver City, California, was deemed an expert in forensic toxicology and hair testing for drugs of abuse in the workplace based on the qualifications cited in his curriculum vitae and his experience (Tr. 72; Dept. Exs. 6-7).

Cairns testified that he personally prepared the laboratory data package produced by Psychomedics which details the analytical results of the testing of the Respondent's hair samples (Dept. Ex. 8). Cairns confirmed that the laboratory data package shows that the chain of custody of the Respondent's hair samples was intact with no deficiencies. Cairns also confirmed that the laboratory data package shows that all quality control and quality assurance procedures were followed during testing. (Tr. 104-105).

At trial, Cairns interpreted the testing data contained in the laboratory data package. He testified that the analytical results show that Respondent's "A" hair sample (LAN 213037166) was tested first and it tested presumptive positive for cocaine when subjected to the Enzyme Immunoassay (EIA) screening test. As a result, following laboratory protocol, both of the Respondent's hair samples were then separately tested via Liquid Chromatography Mass Spectrometry (LC/MS/MS) instrumentation. The LC/MS/MS test results showed that both samples tested positive for cocaine at a concentration level above the administrative reporting cut-off level of five nanograms of cocaine per ten milligrams (5ng/10mg) of hair. (Dept. Ex. 8) Respondent's "A" hair sample (LAN 213037166) tested positive at 11.7ng/10mg of hair.

Respondent's "B" hair sample (LAN 410033888) tested positive at 8.53ng/10mg of hair. (Dept. Ex. 8 p. 4-6).

Cairns further testified that the LC/MS/MS analytical results show that both of the Respondent's hair samples also tested positive for the presence of benzoylecgonine (BE), the primary cocaine metabolite that is produced in the body when cocaine is ingested and metabolized. For a hair sample to be deemed positive, the metabolite BE must be present at a concentration level equal to or greater than 5 percent of the cocaine concentration. (Tr. 120). Both of Respondent's samples contained a concentration of BE greater than 5 percent. (Tr. 120-121). Respondent's "A" hair sample (LAN 213037166) tested positive for BE at 0.9ng/10mg, and Respondent's "B" sample (LAN 410033888) tested positive for BE at 0.63ng/10mg of hair. (Dept. Ex. 8 p. 4-6; Tr. 119-121).

Cairns explained that when cocaine enters the body through ingestion, whether it is smoked, snorted, eaten or injected, it enters the blood stream. As blood enters the liver, the liver metabolizes some of the ingested cocaine creating BE. As this blood then flows into the base of every hair follicle on the body, both cocaine and BE are trapped inside the hair follicles as they grow out from the skin. (Tr. 86-87).

Cairns testified that the hair that taken from Respondent's head had a "look back" period of 90 days, meaning that analysis of the Respondent's hair samples would detect cocaine that was ingested within 90 days of the date that her hair samples were collected. (Tr. 122). Cairns opined that the LC/MS/MS analytical results reflected multiple ingestions of cocaine by Respondent during the 90 day "look back" period and characterized the drug use as "recreational...perhaps one or two lines [of cocaine] a month." (Tr. 123, 128).

Analysis

McLean's testimony established that Respondent's hair samples were properly collected and stored in accordance with Department-mandated hair sample collection and storage procedures. Cairns' testimony then established that the seals on the samples and the chain of custody of Respondent's hair samples were intact with no deficiencies.

Cairns testified that after Respondent's first hair sample tested positive for cocaine via the EIA screening test, both of Respondent's hair samples were subjected to LC/MS/MS testing and the results established that both of Respondent's hair samples tested positive for the presence cocaine at concentration levels which were over the administrative reporting cut-off level. (Dept. Ex. 8) Cairns offered unrefuted expert testimony that these results reflected multiple ingestions of cocaine by Respondent during the 90 day period preceding McLean's collection of her hair samples. (Tr.128-129).

Where, as here, a positive result produced by a recognized screening test is confirmed when hair samples are subjected to mass spectrometry analysis, such testing results have been found to constitute substantial scientific evidence of the presence of cocaine in the sample.¹ Therefore, based on the above-cited testimony, Psychomedics' test results regarding Respondent's hair samples constitute substantial evidence that Respondent knowingly possessed and ingested cocaine.²

Since the record is devoid of any plausible alternative reason as to how the Respondent's hair samples could have tested positive for the presence of cocaine and BE at the levels detected by Psychomedics' testing other than that the Respondent obtained and knowingly ingested

¹ McBride v. Kelly, 215 A.D.2d 161 (1st Dep't 1995).

² McGovern v. Safir, 266 A.D.2d 107 (1st Dep't 1999).

cocaine, the only conclusion that can be reached is that the Respondent possessed and ingested cocaine.

Therefore, consistent with Cairns' expert testimony, Respondent is found guilty of having ingested cocaine between March 12, 2018, and June 12, 2018.

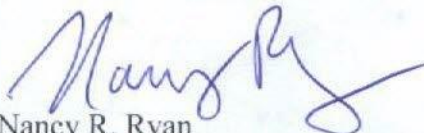
PENALTY RECOMMENDATION

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on August 30, 1993. Information from her personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The record here establishes that Respondent violated the Department's strict rule against using illegal drugs. Respondent's cocaine use potentially put herself and the Department at risk, an action which raises serious questions about Respondent's judgment and fitness to serve as a police officer. Her failure to appear before this tribunal further demonstrates her unwillingness to accept the responsibility of continuing service as a police officer in this City.

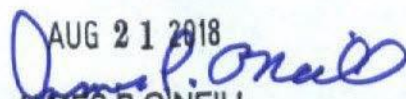
As a result, I recommend that she be DISMISSED from the New York City Police Department.

Respectfully submitted,



Nancy R. Ryan
Assistant Deputy Commissioner - Trials

APPROVED

AUG 21 2018

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE YLKA MORALES
TAX REGISTRY NO. 914384
DISCIPLINARY CASE NO. 2018-19184

Respondent was appointed on August 30, 1993. On her last three annual evaluations she received an overall rating of 4.5 "Extremely Competent/Highly Competent." She has been awarded four medals for Excellent Police Duty and two medals for Meritorious Police Duty. [REDACTED]

Respondent has a prior formal disciplinary record. In 2001, she forfeited 20 vacation days after being found guilty at trial of failing to inform her supervisor of her whereabouts, failing to correct an incorrect entry made on the roll call sheet, and failing to submit an activity report. [REDACTED]

From September 10, 2002, to May 21, 2004, Respondent was on Level 1 Monitoring as the result of "Negative Performance/Behavior." On October 27, 2016, Respondent was placed on Level 1 Monitoring based on her history with the Department.

For your consideration.

Nancy R. Ryan
Assistant Deputy Commissioner – Trials